

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

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In the Matter of:

TARA KATELYN WALSH,

Petitioner,

-against-

STEPHEN GRANT RUSSELL,

Respondent.

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STEPHEN GRANT RUSSELL,

Petitioner,

-against-

TARA KATELYN WALSH,

Respondent.

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File No. 154703
Docket Nos: V-07641-18
O-12635-19
V-07641-18/19F

File No. 154703
Docket Nos: O-12635-19/19B
V-07461-18/19G
O-12635-19/19C
V-07641-18/19H

Affidavit of Stephen Grant Russell
In Support of Motion to Reargue and Vacate

STEPHEN GRANT RUSSELL, hereby states under penalty of perjury as follows:

1. I am the Respondent in the above-captioned action, and as such I am fully familiar with all the facts and circumstances contained herein. I submit this Affidavit in support of my motion for an order (a) granting his motion to reargue the denial of the Order to Show Cause dated February 5, 2020, and denied on the record at the February 6, 2020 conference, (b) vacating under CPLR 5015(a) the Court's order (J. Nilda Morales Horowitz, J.F.C.) dated February 6, 2020, and entered February 6, 2020 ("Protection Order"), which granted petitioner Tara Katelyn Walsh ("Petitioner" or "Walsh") a permanent order of protection against me on my alleged default in

appearance at a conference the same day, (c) vacating under CPLR 5015(a) the Court's order (J. Nilda Morales Horowitz, J.F.C) dated May 27, 2020, entered February 18, 2020, and with Notice of Entry dated May 28, 2020 ("Custody Order"), which granted Petitioner a permanent order of custody of my infant child, and (d) staying under CPLR 2201 enforcement of the Protection and Custody Orders until the Court determines this motion.

Respondent Submitted a Request to the Court to Appear by Telephone in Advance of the Conference due to a Medical Emergency and the Spread of COVID-19.

2. In late January of 2020, my fiancé Kelly Turnure required an emergency medical procedure, which necessitated general anesthesia and sedation. It was necessary for me to take her to and from the hospital in San Francisco and be present for her recovery. I immediately notified my counsel, and on January 24, 2020, we informed the Court and requested that the Court allow me to appear by telephone due to the medical emergency. We also expressed to the Court our concerns of travelling due to the spread of COVID-19 in the San Francisco area and the travel advisories discouraging travel. Attached hereto as **Exhibit A** is a true and correct copy of the January 24, 2020 letter to the Court.

3. Having received no response from the Court, my counsel sent additional correspondence to the Court on February 4, 2020, two days prior to the conference, to confirm that I would be allowed to appear by telephone. In the late afternoon of February 5, 2020—the afternoon prior to the February 6, 2020 conference—the Court informed us that it was denying my request to appear by telephone and was requiring in-person attendance. Attached hereto as **Exhibit B** is a true and correct copy of the Court's denial of my request to appeal by telephone, received in the late afternoon of February 5, 2020.

After the Court Denied Respondent's Request *the Day Before the Conference*, Respondent Immediately Travelled to New York in an Attempt to Attend the Conference in Person but was Not Able to Arrive at the Court in Time.

4. Upon learning of the Court's denial of my request to appear by telephone, I immediately booked the next available flight to New York from San Francisco in a good faith attempt to attend the conference in person. The only available flight was at 6:20 a.m. the next morning. Attached hereto as **Exhibit C** is a true and correct copy of the flight confirmation I received a few hours after I received the court's denial of my request. I informed my counsel who advised the court at the February 6, 2020 conference of the circumstances and the timing of my flight. Despite being apprised of the reasons for my inability to attend in person, the Court held that I was in default.

5. I understood the February 6, 2020 conference to be a status conference regarding visitation, and not a hearing on the merits of any pending petitions. My inability to attend the conference was not intentional nor willful. I was willing and able to appear by phone, and if the Court had made a reasonable accommodation and granted a brief continuance of the conference, I would have been able to timely appear in person.

Respondent Raised Numerous Meritorious Reasons for the Denial of Petitioner's Request for Custody and Request for an Order of Protection.

6. There are numerous reasons why sole custody of my daughter should not be granted to Petitioner Tara Walsh ("Petitioner"). I was granted a permanent Restraining Order After Hearing on the merits against Petitioner, on November 15, 2019 based, without limitation, on Petitioner's admissions under oath that she had drugged me on several occasions without my knowledge or consent. Attached hereto as **Exhibit D** is a true and correct copy of the November 15, 2019 permanent Order of Protection. Attached hereto as **Exhibit E** is a true and correct copy of Petitioner's testimony under oath regarding her surreptitious drugging of me. At the time of the

February 6, 2020 conference, there were no permanent orders of protection against me.

7. Moreover, it was Petitioner who initially absconded with my daughter to New York in 2018, in violation of a Standard Restraining Order that was in place in San Francisco, which prohibited leaving the State of California with my daughter without my written consent or a court order. Attached hereto as **Exhibit F** is a true and correct copy of the June 4, 2018 Standard Restraining Order that was in place when Petitioner fled to New York with my daughter. These are only a few examples of the many instances of Petitioner's misconduct, which are more fully set forth in the Order to Show Cause, filed with the Court on February 5, 2020, and the Family Offense Petition filed on June 16, 2020, including, without limitation, allegations of physical abuse against my daughter.

8. I travelled to New York numerous times to see my daughter and participated in at least twelve court-supervised visits with my daughter, with five different supervisors, per the Court's orders. See id., materials regarding visitation filed in support of the Order to Show Cause and Family Offense Petition. However, the Court did not consider these visits or any visitation reports during the conference, when it granted sole custody of my daughter to Petitioner.

9. Petitioner's request for an Order of Protection against me is also baseless and unwarranted. Petitioner has admitted on numerous occasions that the allegations in her request for an order of protection were false, and that I never threatened to harm her. Contrary to her sworn affidavit to the court, Petitioner admitted that she was not present during the events she alleges in her request. Petitioner's prior counsel even conceded that he would have to withdraw Petitioner's request for a temporary order of protection if Petitioner was not present as she stated in her affidavit.

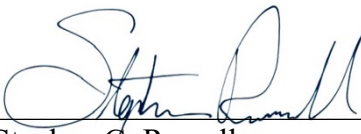
10. Further, in a signed letter to the police, Petitioner admitted that I had never

threatened to kill her or Evie. Attached hereto as **Exhibit G** is a true and correct copy of Petitioner's letter. Moreover, Petitioner's account submitted to the police entirely contradicts the accounts of two court supervisors and a nanny who were present during the events Petitioner alleges in support of her request. Indeed, Claudette LaMelle, a court-appointed supervisor who was present during the events Petitioner alleges, confirmed that Petitioner's allegations were false and inaccurate. Attached hereto as **Exhibit H** is a true and correct copy of Ms. LaMelle's statement regarding the events alleged by Petitioner. In fact, a hearing in San Francisco held on the same facts and based on Petitioner's own testimony, made a determination in my favor. See Exs. D-E.

11. The Court should not reward Petitioner for her continued abuse of process and lies to the court. I have only been able to see my daughter a dozen short times in two and a half years. I had a hearing scheduled for October 2018 in San Francisco just after Petitioner fled to New York. The personal and emotional expense, and the harm to the court from Petitioner's lies have been immeasurable and justice requires that her abuse of a process designed to protect parents from the deprivation of their parental rights be finally brought to a close.

Dated: San Francisco, California

January 14, 2021



Stephen G. Russell